

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR ENGROSSED

SENATE BILL NO. 171

By: Kirt and Stanley of the
Senate

and

Hilbert of the House

COMMITTEE SUBSTITUTE

An Act relating to state government; amending Section 1, Chapter 11, O.S.L. 2023 (74 O.S. Supp. 2025, Section 465), which relates to the commissioning of peace officers; directing the Commissioner of Public Safety to commission peace officers in conjunction with the President Pro Tempore of the Oklahoma State Senate or the Speaker of the Oklahoma House of Representatives; providing jurisdiction of commissioned officers; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 11, O.S.L. 2023 (74 O.S. Supp. 2025, Section 465), is amended to read as follows:

Section 465. A. The Commissioner of Public Safety ~~may~~ shall, in conjunction with either the President Pro Tempore of the Oklahoma State Senate or the Speaker of the Oklahoma House of Representatives, commission as peace officers ~~one member~~ no more than two members of the security team of the Oklahoma State Senate

1 and ~~one member~~ no more than two members of the security team of the
2 Oklahoma House of Representatives, provided such commissioned
3 officers must obtain and maintain certification as full-time peace
4 officers pursuant to Section 3311 of Title 70 of the Oklahoma
5 Statutes.

6 B. Any such commissioned officers are hereby declared to be
7 peace officers of the State of Oklahoma and shall be so deemed and
8 taken in all courts having jurisdiction of offenses against the laws
9 of the state. Such commissioned officers shall have the powers and
10 authority now and hereafter vested by law in other peace officers,
11 including the power of arrest, enforcement of the criminal laws of
12 this state, search and seizure, and the authority for serving or
13 execution of civil process.

14 C. The jurisdiction of such commissioned officers shall ~~include~~
15 ~~all powers of arrest granted to the sergeant at arms as set forth in~~
16 ~~Section 773 of Title 74 of the Oklahoma Statutes, but the~~
17 ~~jurisdiction of such commissioned officers shall otherwise be~~
18 ~~limited to the Capitol building, grounds, and parking lots described~~
19 ~~in Sections 15.1 and 15.3 of Title 73 of the Oklahoma Statutes~~ be
20 pursuant to Sections 99 and 99a of Title 21 of the Oklahoma
21 Statutes, and shall include all powers of arrest granted to the
22 sergeant at arms as set forth in Section 773 of this title, but such
23 jurisdiction shall be effective only while in the performance of
24 official duties.

1 D. Any commission issued by the Commissioner pursuant to this
2 section shall be subject to all requirements set forth by the
3 Commissioner, and the Commissioner may limit the power and scope of
4 the commission. Further, the Commissioner may suspend or revoke the
5 commission for any reason, and the commission shall be deemed
6 terminated upon the commissioned officer's separation of service or
7 reassignment to another position outside the security team of their
8 respective bodies.

9 E. Such commissioned officers shall not be deemed to be
10 officers, agents, or employees of the Department of Public Safety,
11 and no action or omission by such commissioned officers shall be
12 deemed to be an action or omission of the Department of Public
13 Safety.

14 SECTION 2. This act shall become effective November 1, 2026.
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